

APPELBAUM, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.

CASE NUMBER: 25CV-0208714

Tentative Ruling on Motion to Compel Discovery Responses: Plaintiffs move for an order compelling each Defendant to respond to Plaintiffs' (1) Request for Production of Documents, Set One; (2) Request for Admissions, Set One; (3) Form Interrogatories, Set One; and (4) Special Interrogatories, Set One. Defendants oppose the motion to the extent that Defendants' objections are well founded and should not be compelled.

A party has thirty days after service to respond to a Request for Production, Request for Admissions, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c).

"Unsworn responses are tantamount to no responses at all." *Zorro Inv. Co. v. Great Pacific Securities Corp.* (1977) 69 Cal.App.3d 907, 914; *Appleton v. Superior Ct.* (1988) 206 Cal. App. 3d 632, 636.

Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Nevertheless, there is evidence here of significant meet and confer efforts.

Plaintiffs have presented evidence that each set of discovery was propounded to Defendants through counsel on November 11, 2025, and that Defendants sought three extensions. Defendants served unverified and incomplete responses on February 23, 2026. Extensive meet and confer communications took place and Plaintiffs' counsel ultimately set a deadline for receipt of responses by close of business May 25, 2026. Defendants acknowledge that amended verified responses have not yet been served. Failure to timely serve discovery responses results in a waiver of objections, including based on privilege or work product protection. CCP §§ 2030.290(a); 2031.300. Plaintiffs have established that the discovery is relevant and that there is good cause for further production. Plaintiff is entitled to sanctions, but none were requested and no basis has been provided for the Court to determine a reasonable amount. Therefore, no sanctions will be imposed.

The Motion is **GRANTED**. Defendants are **ORDERED** to provide verified discovery responses within ten days of the service of the Notice of Entry of Order. Objections are waived. Plaintiffs provided a proposed order that will be modified to reflect the Court's ruling.

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Tentative Ruling on Motion to Compel Attendance at Depositions: Plaintiffs' move for an order compelling Defendants to provide dates certain for the depositions of seven witnesses pursuant to Plaintiffs' properly served Notice of Taking Videotaped Depositions and Request for Production of Documents within three days of the date of the order granting this motion. Defendants do not oppose the motion but request thirty days to provide dates certain and that the first four witnesses who had direct involvement in the decedent's care be deposed first, with the remaining three witnesses to follow.

A party may move for an order compelling a deponent's attendance and testimony, if, after service of a deposition notice, a party to the action without having served a valid objection fails to appear for examination or proceed with it. CCP 2025.450(a). Here, Plaintiffs have provided evidence that Defendants' depositions have been properly noticed. Defendants have failed to provide available dates and meet and confer efforts have been unsuccessful. Defendant's request regarding the sequence of depositions is reasonable; however, the request for

30 days to provide dates certain is not reasonable considering the Notice of Taking Videotaped Depositions and Request for Production of Documents was served on March 26, 2026.

Plaintiffs' Motion to Compel Attendance at Depositions is **GRANTED**. Defendants are ordered to provide dates certain for all seven witnesses depositions within fifteen (15) days of service of Notice of Entry of Order. Rose Hervegault, Lauri Cruz, Jerilyn Baucum, and Cynthia Bradley are to be deposed first, with the Vice President of Operations, Regional Director of Clinical Operations, and Regional Clinical Nurse to follow. A proposed order has been lodged and will be modified to reflect the Court's ruling.

AXIOM REPERTORY THEATRE VS. CHARITY ONE INSURANCE AGENCY, ET AL.
CASE NUMBER: 26CV-0209907

Tentative Ruling on Application to Appear Pro Hac Vice: Owen R. Mooney, an attorney admitted to practice law in the States of Texas and Washington, seeks admission pro hac vice in order to represent Defendant Great American Assurance Company. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) also requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Application is verified and contains all the information required by Rule 9.40(d). The Application was timely filed and properly noticed. The fee to the State Bar has been paid. The Application is **GRANTED** and the Court will execute the proposed Order.

BURNS VS. MCCrackEN
CASE NUMBER: 26CH-0210350

Tentative Ruling on Motion for Attorney's Fees: Respondent Dustin McCracken moves for attorney's fees and costs pursuant to CCP § 527.6(s). The motion is procedurally defective.

Procedural Defects: The Notice of Motion identifies two different hearing dates. The caption identifies the hearing date as July 20, 2026. The body of the Notice identifies the hearing date as July 13, 2026. The proof of service is also defective. It identifies the person served as "Tyler Maize Lalaguna," who is in fact the individual that served the motion. Based on these defects, Petitioner objects to the motion and request it be denied due to the notice issues. Petitioner's opposition was untimely and fails to provide any evidence that he was prejudiced or actually misled by the discrepancies. Petitioner's opposition also admits that motion was actually received by the Petitioner. The Court finds that the motion is procedurally defective; however, the defects are curable. The Court will continue the matter for proper notice/service.

Lack of Evidence: The motion is supported by the Declaration of Tyler Lalaguna to justify the amount of the